

Service, is the correct address for Defendant. The only evidence presented to show the lack of receipt is Defendant's own uncorroborated statements.

In any event, the right to move for a deemed admitted order turns on proper service, not proof of actual receipt.* Code Civ. Proc. §§ 2033.070 ("The party requesting admissions shall serve a copy of them on the party to whom they are directed and on all other parties who have appeared in the action.") and 2033.210 ("The party to whom requests for admission have been directed shall respond...").

The Court next turns to whether the pending motion should be denied because Defendant provided Plaintiff with responses to the RFAs. The Opposition states that Defendant "will serve substantially compliant response before motion hearing on 12/23/2025." See Opposition, p. 2.

No further declaration addressing any such responses to the RFAs has been filed to date.

*While the Court might well have discretion in the interests of justice to deny a discovery motion if it were persuaded that a responding party never actually received the discovery request at issue, the Court cannot come to that conclusion here, by a preponderance of the evidence.

Disposition

The Court further finds and orders as follows:

1. The **PARTIES ARE ORDERED TO APPEAR** to address the status of service of any responses to the RFAs by Defendant.

8. 9:00 AM CASE NUMBER: L25-07949
CASE NAME: ONEMAIN FINANCIAL GROUP, LLC VS. SOLOMON JAPPA
HEARING IN RE: MOTION TO COMPEL ARBITRATION & DISMISS
FILED BY:
TENTATIVE RULING:

Defendant Solomon V. Jappa ("Defendant") filed a Motion to Compel Arbitration and Dismiss or Stay Proceedings on November 6, 2025 (the "Arbitration Motion"). The Arbitration Motion was set for hearing on December 23, 2025.

A Proof of Service of the motion on the plaintiff OneMain Financial Group, LLC ("Plaintiff") has been filed.

Plaintiff filed an Opposition on December 10, 2025.

Background

Contractual arbitration, also called private or nonjudicial arbitration, is a procedure for resolving disputes that arise from the parties' agreement. See CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2025) ("CJER Civ. Proc. before Trial"), § 3.35.

Arbitration involves the waiver of the right to a jury trial and generally involves limits on the scope of judicial review of an arbitration decision. *Id.*

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate. Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

A petition to compel arbitration is heard “in a summary way in the manner ... provided by law for the making and hearing of motions.” Code Civ. Proc. § 1290.2; see *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96. A party is generally not entitled to an evidentiary hearing with live witness testimony, although the Court has discretion to conduct such a hearing; for example, where there are sharply conflicting factual accounts requiring the hearing of such testimony. *Id.*

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96, quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.

The Federal Arbitration Act (9 U.S.C. § 1 *et seq.*) (“FAA”) applies to agreements involving interstate commerce. See *Gamma Eta Chapter of Pi Kappa Alpha v. Helvey* (2020) 44 Cal.App.5th 1090, 1098. Where no party raises the issue of interstate commerce or applicability of the FAA, the court applies California law. *Id.*

Analysis

Defendant’s motion contends that the parties’ contract contains a “comprehensive arbitration provision...” See Declaration of Solomon V. Jappa (the “Supporting Declaration”) attached as part of Arbitration Motion, p. 5, ¶2. A copy of the agreement with the subject arbitration clause (the “Arbitration Agreement”) is attached to Defendant’s Supporting Declaration. The Arbitration Agreement recites that it is governed by the FAA.* Arbitration Agreement, ¶1.

Plaintiff’s Opposition does not deny the existence of valid Arbitration Agreement. Rather, Plaintiff contends that Defendant has not complied with a prerequisite to contractual arbitration, service of written “Notice of Dispute” compliant with the terms and conditions of the Arbitration Agreement.

4. PRE-ARBITRATION NOTICE OF DISPUTE AND INFORMAL RESOLUTION. A party who intends to seek arbitration must first send to the other party a written Notice of Dispute (“Notice”). The Notice to Lender may be sent by U.S. mail or professional courier service addressed to OneMain Financial, Legal Department, 100 International Drive, 16th Floor Baltimore, MD 21202 (“Notice Address”). The Notice to me may be sent to the address on file with my account. The Notice must include all of the following information: (a) my name; (b) my account number; (c) a description of the nature and basis of the claim or dispute; (d) an explanation of the specific relief sought and the basis for the calculations; (e) the signature of the party sending the Notice; and (f) if I am sending the Notice and have retained an attorney, my signed statement authorizing Lender to disclose my confidential account records to my attorney if necessary in resolving my claim.

Arbitration Agreement, ¶4.

This is not a case involving an arbitration clause that might be invoked by a mere implied demand for arbitration by virtue of bringing of a motion to compel arbitration. For example, where the relevant arbitration clause language merely requires a party to make a “demand” or to give “notice” requesting arbitration, it may well be enough to seek to compel arbitration after the initiation of a lawsuit by the other party or other conduct tantamount to a refusal to arbitrate the controversy. See *Hyundai Amco America, Inc. v. S3H, Inc.* (2014) 232 Cal.App.4th 572, 577 (a formal demand is not necessarily a prerequisite to seeking a court order compelling arbitration).

Here, however, the subject Arbitration Agreement contains a specific contractual prerequisite to arbitration, the service of a written “Notice of Dispute” which must include the information set forth in the Arbitration Agreement. See Arbitration Agreement, ¶4. The Arbitration Agreement then requires certain informal resolution procedures, followed by initiation of arbitration through the American Arbitration Association (“AAA”). See Arbitration Agreement, ¶¶4-5.

A trial court properly denies a motion to compel if a party seeking to compel arbitration has failed to meet specific demand requirements “pursuant to and under the terms of their written arbitration agreement.” *Mansouri v. Superior Court* (2010) 181 Cal.App.4th 633, 641.

Defendant has not shown service of a valid demand and compliance with the other prerequisites for contractual arbitration pursuant to and under the terms of their Arbitration Agreement.

*Although an arbitration agreement may provide that the arbitration is to be governed by the FAA, generally the California Arbitration Act governs arbitral procedures brought in California courts. *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 922. There has been no showing of some FAA specific limitation relevant to enforcement of the subject Arbitration Agreement in this case. In determining the rights of parties to enforce an arbitration agreement within the FAA's scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration. *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC, supra*, 55 Cal.4th at 236.

Disposition

The Court finds and orders as follows:

1. The Arbitration Motion is DENIED, without prejudice.
2. The Court will issue the order after hearing.

9. 9:00 AM CASE NUMBER: N25-2204
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. KYO RAGO
*MOTION/PETITION TO COMPEL ARBITRATION PTN TO CONFIRM CONTRACTUAL ARB
FILED BY: